

Public Moneys (Recovery of Dues) Act, 1965

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State of Uttar Pradesh - Act

Public Moneys (Recovery of Dues) Act, 1965

UTTAR PRADESH

India

Public Moneys (Recovery of Dues) Act, 1965

Act 25 of 1965

Published on 1 January 1965

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Public Moneys (Recovery of Dues) Act, 1965

[U.P. Act

No. 25 of 1965

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An Act to provide for speedy recovery of certain classes of dues payable to the State or to the Uttar Pradesh Financial Corporation.

It is hereby enacted in the Sixteenth year of the Republic of India as follows: -

1.

Short title and extent.

(1)

This Act may be called the Public Moneys (Recovery of Dues) Act, 1965.

(2)

It extends to the whole of Uttar Pradesh.

2.

Definitions.

- In this Act, unless the context otherwise requires -

(a)

'Corporation' means the Uttar Pradesh Financial Corporation established under the State Financial Corporations Act, 1951;

(b)

'financial assistance' means any financial assistance-

(i)

for establishing, expanding or running any industrial undertaking; or

(ii)

for purposes of vocational training; or

(iii)

for the development of animal husbandry; or

(iv)

for purposes of any other kind of planned development; or

(v)

for relief against distress;

(c)

'industrial concern' shall have the meaning assigned to the expression in the State Financial Corporations Act, 1951 as amended from time to time;

(d)

'industrial undertaking' includes any undertaking for the manufacture, preservation or processing of goods or mining or the hotel industry or the transport of passengers or goods or the generation or distribution of electricity or any other form of power, or for the development of any contiguous area of land as an industrial estate:

Explanation. - The expression 'processing of goods' includes any art or process for producing, preparing or making an article by subjecting any material to a manual, mechanical, chemical, electrical or any other like operation);

(e)

'State Government' means the Government of Uttar Pradesh.

3.

Recovery of certain dues as arrears of land revenue.

(1)

Where any person is party -

(a)

to any agreement relating to a loan, advance or grant given to him by the State Government or the Corporation by way of financial assistance, or

(b)

to any agreement relating to a guarantee given by the State Government or the Corporation in respect of a loan raised by an industrial concern, or

(c)

to any agreement providing that any money payable thereunder to the State Government shall be recoverable as arrears of land revenue, and such person -

(i)

makes any default in repayment of the loan or advance or any instalment thereof, or

(ii)

having become liable under the conditions of the grant to refund the grant or any portion thereof, makes any default in repayment of such grant or portion or instalment thereof, or

(iii)

otherwise fails to comply with the terms of the agreement, -

then in the case of the State Government, such officer as may be authorised in this Behalf by the State Government by notification in the official Gazette, and in the case of the Corporation, the Managing Director thereof, may, without prejudice to any other mode of recovery under any other law for the time being in force, send a certificate to the Collector, mentioning the sum due from such person and requesting that such sum together with costs of the proceedings be recovered as if it were an arrear of land revenue.

(2)

The Collector on receiving the certificate shall proceed to recover the amount stated therein as an arrear of land revenue.

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